

Pt 6 (Heading)
amended by
No. 2/2019
s. 20.

Part 6—Protection of person making public interest disclosure

S. 38
substituted by
No. 2/2019
s. 21.

38 Disclosures to which this Part applies

- (1) This Part applies to the following disclosures—
 - (a) a public interest disclosure made in accordance with Division 2 of Part 2;
 - (b) a misdirected disclosure;
 - (c) a complaint by a police officer or a protective services officer about the conduct of another police officer or protective services officer made in accordance with section 167(3) of the **Victoria Police Act 2013**;
 - (d) an external disclosure made in accordance with section 38A.
- (2) A reference in this Part (other than a reference in this section or section 38A) to a public interest disclosure is taken to be a reference to a disclosure to which this Part applies.
- (3) This Part applies to a public interest disclosure made in accordance with Division 2 of Part 2 or a misdirected disclosure from the time the disclosure is made—
 - (a) whether or not the entity to which the disclosure was made has notified the disclosure to the IBAC, the Victorian Inspectorate or the Integrity and Oversight Committee; and
 - (b) whether or not the IBAC, the Victorian Inspectorate or the Integrity and Oversight Committee has determined that the disclosure is a public interest complaint.

- (4) This Part applies to a complaint referred to in subsection (1)(c) from the time the complaint is made—
 - (a) whether or not the complaint is investigated by the Chief Commissioner of Police; and
 - (b) whether or not the Chief Commissioner of Police has notified the complaint to the IBAC under section 22; and
 - (c) whether or not the IBAC has determined that the complaint is a public interest complaint.
- (5) Any further information relating to a public interest disclosure provided by the person who made the disclosure is to be treated as if it were a public interest disclosure.
- (6) Subsection (5) applies only to further information provided, whether orally or in writing, to—
 - (a) in the case of a public interest disclosure made in accordance with Division 2 of Part 2—the entity to which the disclosure was made; or
 - (b) the IBAC; or
 - (c) the Victorian Inspectorate; or
 - (d) the Integrity and Oversight Committee; or
 - (e) an investigating entity that is investigating the disclosure; or
 - (f) a person engaged by the Integrity and Oversight Committee under Part 4A to investigate a public interest disclosure.

38A External disclosures

- (1) An external disclosure is a public interest disclosure made to a person or body who is not an entity to whom a public interest disclosure may be made under Division 2 of Part 2.

S. 38A
inserted by
No. 2/2019
s. 21.

- (2) Subject to subsection (3), an external disclosure is made in accordance with this section if—
- (a) the person making the external disclosure has previously made a public interest disclosure in accordance with Division 2 of Part 2 (the *original disclosure*) and the original disclosure was not made anonymously; and
 - (b) the original disclosure was determined under Division 2 of Part 3 to be a public interest complaint and the person has been notified of that determination; and
 - (c) the subject matter of the external disclosure is substantially the same as the subject matter of the original disclosure; and
 - (d) either subsection (3) or (4) applies.
- (3) This subsection applies if—
- (a) the person has not been notified by the investigating entity about any action taken in relation to the original disclosure within 6 months after being notified that the original disclosure has been determined to be a public interest complaint; and
 - (b) the person has requested advice on the progress of the public interest complaint from the investigating entity and has not received a response within 30 days after that request.
- (4) This subsection applies if—
- (a) an investigation of the public interest complaint has not been completed within 12 months after the person was notified that the original disclosure has been determined to be a public interest complaint; and

- (b) the person has requested advice on the progress of the public interest complaint from the investigating entity; and
 - (c) either—
 - (i) the person has not received a response within 30 days after the request; or
 - (ii) the person received a response within 30 days after the request advising that the investigation is still ongoing but has not been advised that the investigation has been completed within 6 months after that response.
- (5) An external disclosure is not a disclosure made in accordance with this section if it contains information that—
- (a) may prejudice a criminal investigation, criminal proceeding or other legal proceeding of which the person making the external disclosure is aware; or
 - (b) is likely to lead to the disclosure of any investigative method used by the IBAC or members of Victoria Police personnel.

Note

Despite being taken to be a public interest disclosure for the purposes of this Part, the confidentiality provisions of Part 7 do not apply to an external disclosure made in accordance with this section.

39 Immunity from liability

- (1) A person who makes a public interest disclosure is not subject to any civil or criminal liability or any liability arising by way of administrative process (including disciplinary action) for making the disclosure.

S. 39(1)
amended by
No. 2/2019
s. 22.

S. 39(2)
amended by
No. 2/2019
s. 22.

- (2) Subsection (1) does not apply to a person who, in making the public interest disclosure, has contravened section 72(1) or (2) in relation to the information disclosed.

40 Confidentiality provisions do not apply

S. 40(1)
amended by
No. 2/2019
s. 22.

- (1) Without limiting section 39, a person who makes a public interest disclosure does not by doing so—
- (a) commit an offence under section 95 of the **Constitution Act 1975** or a provision of any other Act that imposes a duty to maintain confidentiality with respect to a matter or any other restriction on the disclosure of information; or

S. 40(1)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 102).

- (b) breach an obligation by way of oath or affirmation or rule of law or practice or under an agreement requiring him or her to maintain confidentiality or otherwise restricting the disclosure of information with respect to a matter.

S. 40(2)
amended by
No. 2/2019
s. 22.

- (2) Subsection (1) does not apply to a person who, in making the public interest disclosure, has contravened section 72(1) or (2) in relation to the information disclosed.

41 Protection from defamation action

S. 41(1)
amended by
No. 2/2019
s. 22.

- (1) Without limiting section 39, in any proceeding for defamation there is a defence of absolute privilege in respect of the making of a public interest disclosure.

S. 41(2)
amended by
No. 2/2019
s. 22.

- (2) Subsection (1) does not apply to a person who, in making the public interest disclosure, has contravened section 72(1) or (2) in relation to the information disclosed.

42 Liability for own conduct

Despite anything to the contrary in this Part, a person's liability for his or her own conduct is not affected by the person's disclosure of that conduct under this Act.

43 Detrimental action in reprisal for public interest disclosure

S. 43
(Heading)
amended by
No. 2/2019
s. 23(1).

- (1) For the purposes of this Act and subject to subsections (2) and (3), a person takes detrimental action against another person in reprisal for a public interest disclosure if—

S. 43(1)
amended by
No. 2/2019
s. 23(2).

- (a) the person takes or threatens to take detrimental action against the other person because, or in the belief that—

(i) the other person or anyone else has made, or intends to make, the disclosure; or

(ii) the other person or anyone else has cooperated, or intends to cooperate, with an investigation of the disclosure; or

- (b) for either of those reasons, the person incites or permits someone else to take or threaten to take detrimental action against the other person.

- (2) A person does not take detrimental action against another person in reprisal for a public interest disclosure made by the other person if the other person has contravened section 72(1) or (2) in relation to the information disclosed by the public interest disclosure.

S. 43(2)
amended by
No. 2/2019
s. 23(3).

* * * * *

S. 43(3)
repealed by
No. 2/2019
s. 23(4).

44 Management action not prevented

S. 44(1)
amended by
No. 2/2019
s. 24(1).

- (1) Nothing in this Part is intended to prevent a manager from taking management action in relation to an employee who has made a public interest disclosure.

S. 44(2)
amended by
No. 2/2019
s. 24(2).

- (2) A manager may take management action that is detrimental action in relation to an employee who has made a public interest disclosure only if the fact that the employee has made the public interest disclosure is not a reason for the manager taking the action.

S. 44(3)
inserted by
No. 2/2019
s. 24(3).

- (3) Without limiting subsection (1) and subject to subsection (2), management action that may be taken in relation to an employee who has made a public interest disclosure includes any action that may or is required to be taken—
- (a) in respect of performance development (including training), conditions of employment or discipline; or
 - (b) to ensure the safety of the workplace.

45 Protection from reprisal

S. 45(1)
amended by
No. 2/2019
s. 25(1).

- (1) A person must not take detrimental action against another person in reprisal for a public interest disclosure.

Penalty: 240 penalty units or 2 years imprisonment or both.

S. 45(2)
amended by
No. 2/2019
s. 25(2).

- (2) It is a defence in a proceeding for an offence against subsection (1) if a reason referred to in section 43(1)(a) was not a reason for the person taking the detrimental action against the other person.

(3) It is a defence in a proceeding for an offence against subsection (1) if—

- (a) the IBAC, the Victorian Inspectorate or the Integrity and Oversight Committee has determined that the disclosure is not a public interest complaint; and
- (b) at the time the person took the detrimental action, the person knew of that determination.

S. 45(3)(a)
substituted by
No. 2/2019
s. 25(3).

(4) Despite subsection (3), it is not a defence in a proceeding for an offence against subsection (1) if the IBAC, the Victorian Inspectorate or the Integrity and Oversight Committee (as the case may be) determined the disclosure is not a public interest complaint under section 26(5).

S. 45(4)
inserted by
No. 2/2019
s. 25(4).

46 Order for damages or reinstatement

(1) If a person is convicted or found guilty of an offence against section 45, the court may, in addition to imposing a penalty, order that, within a specified time, the offender pay to the person against whom the detrimental action was taken damages that the court considers appropriate to compensate the person for any injury, loss or damage.

(2) If—

- (a) the employer of a person; or
- (b) someone in the course of employment with, or while acting as an agent of, the employer of a person—

is convicted or found guilty of an offence against section 45 in relation to detrimental action taken against that person, the court may, in addition to imposing a penalty and in addition to any damages ordered under subsection (1), order that the employer reinstate or re-employ the person in

his or her former position or, if that position is not available, in a similar position.

- (3) Without limiting the court's discretion, when making an order under subsection (1), the court may take into account any remedy granted under section 47 or any order made under section 49 in relation to the same conduct.

47 Proceedings for damages for reprisal

S. 47(1)
amended by
No. 2/2019
s. 26(1).

- (1) A person who takes detrimental action against another person in reprisal for a public interest disclosure is liable in damages for any injury, loss or damage to that other person.
- (2) The damages may be recovered in proceedings as for a tort in any court of competent jurisdiction.
- (3) Any remedy that may be granted by a court with respect to a tort, including exemplary damages, may be granted by a court in proceedings under this section.
- (4) The right of a person to bring proceedings for damages does not affect any other right or remedy available to the person arising from the detrimental action.
- (5) Proceedings for damages under this section may be brought even if a prosecution in relation to the detrimental action has not been brought under section 45.
- (6) Without limiting the court's discretion, when granting a remedy under this section, the court may take into account any order made under section 46 or 49 in relation to the same conduct.
- (7) In proceedings under this section, costs against the person alleging that detrimental action has been taken in reprisal for a public interest disclosure must not be awarded unless the court is satisfied—

S. 47(7)
inserted by
No. 2/2019
s. 26(2).

- (a) the person's claim that detrimental action had occurred is vexatious; or
- (b) the person did not conduct the litigation reasonably.

48 Vicarious liability of public body

- (1) If a person in the course of employment with, or while acting as an agent of, a public body takes detrimental action against another person in reprisal for a public interest disclosure—
 - (a) the public body and the employee or agent (as the case may be) are jointly and severally civilly liable for the detrimental action; and
 - (b) a proceeding under section 47 may be taken against either or both.
- (2) It is a defence to a proceeding against a public body under section 47 if the public body proves, on the balance of probabilities, that it took reasonable precautions to prevent the employee or agent from taking detrimental action against the other person in reprisal for the public interest disclosure.

S. 48(1)
amended by
No. 2/2019
s. 27.

S. 48(2)
amended by
No. 2/2019
s. 27.

49 Injunction or order

- (1) If, on receipt of an application under section 50, the Supreme Court is satisfied that a person has taken or intends to take detrimental action against another person in reprisal for a public interest disclosure, the Court may—
 - (a) order the person who took the detrimental action to remedy that action; or
 - (b) grant an injunction in any terms the Court considers appropriate.
- (2) The Supreme Court, pending the final determination of an application under section 50, may—

S. 49(1)
amended by
No. 2/2019
s. 27.

- (a) make an interim order in the terms of subsection (1)(a); or
- (b) grant an interim injunction.
- (3) Without limiting the discretion of the Supreme Court, when granting a remedy under this section, the Court may take into account any order made under section 46 or 47 in relation to the same conduct.

50 Application for injunction or order

An application for an order or an injunction by the Supreme Court under section 49 may be made by—

S. 50(a)
amended by
No. 2/2019
s. 28(a).

- (a) a person who believes that detrimental action has been taken or may be taken against him or her in reprisal for a public interest disclosure; or

S. 50(b)
amended by
No. 2/2019
s. 28(b).

- (b) an investigating entity if the investigating entity believes that detrimental action has been taken or may be taken in reprisal for a public interest disclosure the subject of which is a matter that the investigating entity is authorised to investigate under another Act; or

S. 50(c)
inserted by
No. 2/2019
s. 28(c).

- (c) the Integrity and Oversight Committee, if the Committee believes that detrimental action has been taken or may be taken in reprisal for a public interest disclosure the subject of which is a matter that the Committee may under Part 4A engage a person to investigate.

51 Transfer of employee

S. 51(1)
inserted by
No. 2/2019
s. 29.

- (1) An employee of a public service body or a public entity who has made a public interest disclosure and who believes on reasonable grounds that detrimental action will be, is being or has been taken against him or her in contravention of

section 45 may request a transfer of employment in accordance with this section.

- (2) Subject to subsection (4), a public service body Head may transfer an employee of the public service body who has made a public interest disclosure to duties within—
- (a) another public service body; or
 - (b) a public entity; or
 - (c) a different area of the same public service body—

S. 51(2)
inserted by
No. 2/2019
s. 29.

on terms and conditions of employment that are no less favourable overall.

- (3) Subject to subsection (4), a public entity Head may transfer an employee of the public entity who has made a public interest disclosure to duties within—
- (a) a public service body; or
 - (b) a different area of the same public entity—

S. 51(3)
inserted by
No. 2/2019
s. 29.

on terms and conditions of employment that are no less favourable overall.

- (4) An employee may only be transferred under subsection (2) or (3) if—
- (a) the employee requests or consents to the transfer; and
 - (b) the public service body Head or the public entity Head (as the case may be) has reasonable grounds to suspect that detrimental action will be, is being or has been taken against the employee in contravention of section 45; and

- (c) the public service body Head or the public entity Head (as the case may be) considers that the transfer of the employee will avoid, reduce or eliminate the risk of detrimental action being taken against the employee; and
 - (d) the Head of the public service body or public entity to which it is proposed to transfer the employee consents to the transfer.
- (5) The transfer of an employee under subsection (2) or (3) may be permanent or for a fixed term.
- (6) The transfer of an employee under subsection (2) or (3) does not constitute a resignation or termination of employment and the post-transfer service is to be regarded as continuous with the pre-transfer service.
- (7) In this section, *public entity*, *public entity Head*, *public service body* and *public service body Head* have the same meanings as they have in the **Public Administration Act 2004**.